

Defendant shall prepare and submit a proposed final order consistent with this tentative ruling and a proposed judgment.

Calendar Line 10

Case Name: *Robert Busto v. Ford Motor Company et al.*

Case No.: 24CV454552

On June 4, 2020, plaintiff Robert Busto (“Busto”) purchased a 2019 Ford Expedition (the “Subject Vehicle”). (Complaint, ¶ 10.) Ford Motor Company (“Ford”) delivered the Subject Vehicle to Busto with various warranties. (*Id.* at ¶ 11.) Within the express warranty periods, the Subject Vehicle exhibited defects, including transmission, engine, and electrical defects. (*Id.* at ¶ 15.)

On December 19, 2024, Busto filed a complaint against Ford and co-defendant Gosch Ford Temecula, asserting the following causes of action: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair. Ford moves for summary adjudication as to the fifth cause of action for fraud on the grounds that Busto cannot prove the necessary elements of this cause of action. (Notice of Summary Adjudication Motion, p. 1:8-12.)

The court exercises its discretion to consider Busto’s untimely opposition.

“An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.” (Code Civ. Proc., § 437c, subd. (b)(2).) Ford’s motion was scheduled to be heard on July 9, 2026. Bustos needed to file an opposition no later than June 18, 2026, to be considered timely. Bustos, however, did not file and serve an opposition until June 25, 2025. Despite the late opposition, Ford timely filed and served reply papers addressing the substantive merits of the opposition. The court therefore will consider the merits of the opposition. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds]; *Kapitanski v. Von’s Grocery Co.* (1983) 146 Cal.App.3d 29, 32 [“Cognizant of the strong policy favoring the disposition of cases on their merits judges usually consider whether to exercise their discretion in applying local court rules and frequently consider documents which have been untimely filed.”], internal citations omitted.) The court acknowledges, however, that Ford had only a single day to file a timely reply to Busto’s opposition given the date that Busto filed the opposition. The court admonishes Busto to

comply with all applicable statutes and rules with respect to future filings. Any future late filings may be disregarded.

The parties' burdens on a motion for summary judgment or adjudication.

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, at p. 850.) A “party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact.” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1379, internal citations and quotation marks omitted.)

Ford has met its burden as to the complaint’s fifth cause of action for fraudulent inducement.

“The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348 (*Burch*), internal citation omitted.)

Ford argues that Busto has failed to present any evidence in support of the complaint’s fifth cause of action. According to Ford, it has propounded written discovery in this matter “seeking all facts, witnesses, and documents” supporting the complaint’s fifth cause of action and Busto failed to provide any facts or documents showing a “Transmission Defect,” much less that “Ford had prior exclusive knowledge of the same.” (Memorandum of Points and Authorities in Support of Motion for Summary Adjudication (“MPA”), p. 6:11-26.)

In response to the special interrogatory “[s]tate ALL facts that support the allegations set forth in YOUR fifth cause of action for Fraudulent Inducement — Concealment, as set forth in YOUR COMPLAINT,” Busto responded, excluding objections, that information “responsive to this request may be found in the Complaint and documents produced in connection with Plaintiff’s Responses to Defendant’s Requests for Production of Documents, Set One. Pursuant to Code Civ. Proc. § 2030.230, Plaintiff refers Defendants to the documents Plaintiff produced in response to Defendant’s Request for Production of Documents to Plaintiff, Set One. Discovery and investigation are ongoing, and Plaintiff reserves the right to supplement and/or amend this

response.” (Declaration of Kenneth D. Hollenbeck in Support of Ford’s Motion for Summary Adjudication (“Hollenbeck Declaration” or “Hollenbeck Decl.”), Ex. C, pp. 15:17-18, 16:7-12.)

In response to the interrogatory “IDENTIFY ALL PERSONS with knowledge of facts that support the allegations set forth in YOUR fifth cause of action for Fraudulent Inducement — Concealment, as set forth in YOUR COMPLAINT,” Busto responded, excluding objections, that “Plaintiff, who may be contacted through counsel of record; Defendant; Defendant’s agents, representatives, and employees, including Defendant’s authorized repair facility and the personnel they employ, among others. Information responsive to this request may be found in the Complaint and documents produced in connection with Plaintiff’s Responses to Defendant’s Requests for Production of Documents, Set One.” (Hollenbeck Decl., Ex. C at pp. 16:14-16, 17:4-9.)

Finally, in response to the interrogatory “IDENTIFY ALL DOCUMENTS that support the allegations set forth in YOUR fifth cause of action for Fraudulent Inducement — Concealment, as set forth in YOUR COMPLAINT,” Busto, excluding objections, referred Ford to “the documents Plaintiff produced in response to Defendant’s Request for Production of Documents to Plaintiff, Set One.” (Hollenbeck Decl., Ex. C at p. 17:16-17, 18:6-7.)

Ford has also submitted to the court the documents produced by Gusto in response to Ford’s requests for production. They consist of a “retail installment sale contract,” a “limited warranty,” a “maintenance plan application,” a “used vehicle disclosure,” what appear to be invoices and service reports from a repair center, proof of insurance, vehicle registration, and a certificate of title. (Hollenbeck Decl., Ex. D.)

The court finds that Ford has met its initial burden to establish that at least one element of the complaint’s fifth cause of action for fraud cannot be established. A “moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2). Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.” (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590; see also *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102-1103 [“a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff’s factually devoid discovery responses from which an absence of evidence may be reasonably inferred.”], internal citation omitted.) Having reviewed the discovery responses and evidence described above, the court is inclined to agree with Ford that Busto’s discovery responses are “factually devoid” such that an “absence of evidence may be reasonably inferred.” The various documents produced by Busto and relied on in answering Ford’s discovery responses do not establish that Ford intentionally concealed or suppressed a material fact. (See *Burch*, supra, 34 Cal.App.5th at p. 348.) Moreover, the court notes that Busto’s opposition to Ford’s motion does not dispute Ford’s discovery-based argument or direct the court to evidence Busto or Ford produced during discovery. Instead, Busto’s opposition directs the court to documents unsealed from a federal case and “technical service bulletins.” The court discusses these documents below.

In opposition, Busto has not demonstrated a triable issue of fact as to the complaint's fifth cause of action for fraudulent inducement.

The court finds that Busto has not demonstrated that a triable issue of material fact exists. As Busto relies entirely upon documents Busto has requested that the court judicially notice to demonstrate a triable issue of fact, the court addresses this issue first. (Opposition to Ford's Motion for Summary Adjudication ("Opposition"), pp. 7:22-8:4 ["Accordingly, under this well-established law, Plaintiffs need only show that Defendant was generally aware of defects in the 10R80 transmission prior to the June 4, 2020 sale of the Subject Vehicle. As set forth above in Section II, Defendant's internal communications and bulletins demonstrate Defendant's pre-sale knowledge of the Transmission Defect. . . ."].)

The court DENIES Busto's requests for judicial notice. Busto requests that the court judicially notice 18 exhibits (40, if the court considers each individual "service bulletin" a separate document). Busto argues that the court should take judicial notice of Exhibits 1 through 17 because they "were unsealed" in a federal case from the Northern District of California and "are thus part of the public record." (Busto's Request for Judicial Notice in Support of Opposition to Motion for Summary Adjudication, p. 1:2-7.) Busto requests that the court take judicial notice of Exhibit 18 because it consists of "records that were already publicly accessible." (*Id.* at p. 1:6-7.)

Under Evidence Code section 452, the court may judicially notice several types of "matters," including official acts of the "legislative, executive, and judicial departments of the United States" and records of "any court of this state" or "any court of record of the United States or of any state of the United States." (Evid. Code § 452, subds. (a)-(h).) The 18 exhibits subject to Busto's request do not fit into any of these categories. Nor, importantly, does Busto actually argue that they do, let alone cite any specific provision of Evidence Code section 452 in his request for judicial notice. The exhibits Busto requests that the court judicially notice, with the exception of Exhibit 18, appear to be documents produced in discovery in a separate matter. Discovery responses are not properly the subject of judicial notice. (*TSMC North America v. Semiconductor Manufacturing Internat. Corp.* (2008) 161 Cal.App.4th 581, 594, fn. 4.) Nor is it clear from the documents themselves that they were actually filed with any court subject to judicial notice under Evidence Code section 452, subdivision (d). As to exhibit 18, whether a document was "already publicly accessible" does not automatically make it subject to judicial notice. Nor does Busto provide the court with any legal authority indicating otherwise. Ultimately, then, the 18 exhibits are not the proper subject for judicial notice.

Even if the court had judicially noticed these documents, the court would have agreed with many of the evidentiary objections made by Ford to these documents. (See, e.g., Ford's Objections to Exhibits to Request for Judicial Notice.) "Evidence Code sections 452 and 453 permit the trial court to take judicial notice of the *existence* of judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments—but [the court] cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact." (*People v. Woodell* (1998) 17 Cal.4th 448, 455, internal quotation marks and citations omitted, emphasis original.) Busto submits the 18 exhibits discussed above for "the

truth of the matter stated”—Busto argues that Ford’s “internal communications and bulletins demonstrate Defendant’s pre-sale knowledge of the Transmission Defect.” (Opposition, pp. 7:22-8:4; *People v. Flinner* (2020) 10 Cal.5th 686, 735 [“Hearsay is an out-of-court statement offered for the truth of the matter asserted and is generally inadmissible.”], internal citation omitted.) Busto also persuasively objects to these documents on several other grounds, including a lack of proper foundation.

In sum, Busto’s argument in opposition to Ford’s motion for summary adjudication relies upon documents the court has declined to judicially notice. Busto has not otherwise submitted these documents in evidence, but, if Busto had, the court would have agreed with several of the evidentiary objections made by Ford in reply. The court also notes that Busto discusses case law indicating that “evidence concerning vehicles other than the plaintiff’s vehicle are nonetheless relevant to plaintiff’s claims,” “Plaintiff does not need to establish that Defendant was aware of the occurrence of a defect in Plaintiff’s specific vehicle,” and “courts overwhelmingly hold that technical service bulletins and recalls constitute evidence of fraudulent concealment.” (Opposition, pp. 5:27-6:1, 6:16-25, 7:1-2.) The issue, however, is that the documents Busto relies on in making these arguments are not properly before the court. Moreover, the court notes that several of the cases relied on by Busto to argue that “technical services bulletins and recalls constitute evidence of fraudulent concealment” are federal decisions decided at the pleading stage where the court examined the sufficiency of the allegations rather than determining whether a plaintiff met their burden to establish through admissible evidence a triable issue of material fact. (See *In re MyFord Touch Consumer Litig.* (N.D. Cal. 2014) 46 F.Supp.3d 936, 999 [“For the foregoing reasons, Ford’s motion to dismiss is granted in part and denied in part. . .”]; *Sloan v. GM, LLC* (N.D. Cal. 2018) 287 F.Supp.3d 840, 850 [“GM moves to dismiss on several grounds . . .”].) Here, the court finds that Busto has not met this burden.

The court GRANTS Ford’s motion for summary adjudication as to the complaint’s fifth cause of action for fraudulent inducement.